

PPR054182 In the Matter of Olvera Reyes, Jose Adalberto

County: tulare

Division: Civil Law and Motion

Department: 19

Hearing date: 2026-09-24

Motion: Petitioners' Continued Ex Parte Motion

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Re: In the Matter of Olvera Reyes, Jose Adalberto

Case No.: PPR054182

Date: September 24, 2026

Time: 8:30 A.M.

Dept. 19-The Honorable Russell P. Burke

Motion: Petitioners' Continued Ex Parte Motion

Tentative Ruling: To deny the motion

Facts

In this matter, Petitioners filed Petition Probate of Will & For Letters Testamentary/Administration, attached a trust document, and that Petitions cannot locate the original will.

Although the petition, and amended petition, were served via mail on Respondent, Respondent has not yet appeared in this case.

On August 14, 2026, Petitioners filed this ex parte application for TRO seeking:

An Order prohibiting Respondent Araceli Martinez Oros and cemetery management from modifying, transferring, assigning, or utilizing the second interment space on the subject cemetery plot.

An Order freezing all administrative activity on the plot contract pending the hearing on Petitioners' Probate Code § 850 Petition.

An Order compelling Respondent Araceli Martinez Oros to render a full accounting of all funds withdrawn and post-mortem transactions made prior to and upon closing Decedent's bank accounts.

In support, Petitioners state Petitioner states "Xitlali Olvera was formally designated as Decedent's agent under his Advance Health Care Directive and held primary legal authority to control the disposition of Decedent's remains pursuant to California Health and Safety Code § 7100. Petitioner, Xitlali Olvera, was also designated as the Payable on Death (POD) beneficiary on Decedent's bank account."

Further, that "Respondent had unilaterally closed Decedent's bank account and used the funds following his passing."

Petitioners further argue Decedent lacked capacity and that "Respondent was added to Decedent's bank account only after this severe cognitive decline began while Decedent lacked financial capacity."

Further, that "Respondent utilized Decedent's financial card and bank accounts to pay the cemetery and funeral home for the two-space cemetery lot and funeral arrangements, subsequently closing Decedent's account entirely."

As to imminent emergency and irreparable harm, Petitioner states "Because Respondent holds sole signature rights on the contract and has declared her intent to act unilaterally, there is an immediate risk that she will attempt to assign, transfer, or utilize the second interment space for a non-estate third party prior to our court hearing on August 20, 2026. If an unauthorized burial or transfer occurs, the second space will be permanently exhausted, causing immediate, irreparable harm to the estate that cannot be undone."

As to notice, Petitioners state "Pursuant to California Rules of Court, Rule 3.1203, written notice of this Ex Parte Application was transmitted in clear Spanish via telephone text message to Respondent Araceli Martinez Oros at her phone number (831) 905-8797, prior to 10:00 AM on the court day prior to this filing."

No opposition appears filed. This matter was continued to this hearing date.

Authority and Analysis

Here, Plaintiff seeks a TRO.

California Rule of Court, rule 3.1150, entitled "Preliminary injunctions and bonds" notes, in subsection (a), that:

"A party requesting a preliminary injunction may give notice of the request to the opposing or responding party either by serving a noticed motion under Code of Civil Procedure section 1005 or by obtaining and serving an order to show cause (OSC). An OSC must be used when a temporary restraining order (TRO) is sought, or if the party against whom the preliminary injunction is sought has not appeared in the action. If the responding party has not appeared, the OSC must be served in the same manner as a summons and complaint." (California Rules of Court, rule 3.1150(a).)

Rule of Court, rule 3.1150, subdivision (c) states:

(c) Form of OSC and TRO The OSC and TRO must be stated separately, with the OSC stated first. The restraining language sought in an OSC and a TRO must be separately stated in the OSC and the TRO and may not be incorporated by reference. The OSC must describe the injunction to be sought at the hearing. The TRO must describe the activities to be enjoined pending the hearing. A proposed OSC must contain blank spaces for the time and manner of service on responding parties, the date on which the proof of service must be delivered to the court hearing the OSC, a briefing schedule, and, if applicable,

the expiration date of the TRO.”

Here, Respondent has not appeared, no OSC is sought, the restraining language sought in the OSC is not stated separately in the OSC, the OSC does not describe the injunction, and the proposed OSC does not contain appropriate blank spaces as to service, proof of service, or a briefing schedule.

Additionally, the burden is on plaintiff to show all elements necessary to support issuance of the injunction. (O’Connell v. Superior Court (2006) 141 Cal.App.4th 1452, 1481.) “A superior court must evaluate two interrelated factors when ruling on a request for a preliminary injunction: (1) the likelihood that the plaintiff will prevail on the merits at trial and (2) the interim harm that the plaintiff would be likely to sustain if the injunction were denied as compared to the harm the defendant would be likely to suffer if the preliminary injunction were issued. (Smith v. Adventist Health System/West (2010) 182 Cal.App.4th 729, 749.) The court employs a more probable than not standard. (Robbins v. Superior Court (1985) 38 Cal.3d 199, 206.)

Here, Petitioners cannot establish a lack of capacity based solely on their own declarations as to the alleged acts of Respondent and Decedent’s capacity. As such, the Court cannot say there is a likelihood of prevailing on the merits demonstrated at this time. Further, Petitioners indicate the funds have been spent and there is no further injury to the estate. Petitioners do not sufficiently demonstrate an immediate risk of harm or other injury that would be suffered via purchase of the burial plot. Monetary relief, therefore, appears available and no irreparable harm has been demonstrated.

Therefore, the Court denies the motion.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.